

Salman @ Mohd. Salman v. Anil Kumar Garg, Executive Engineer

High Court of Judicature at Allahabad · Single Judge · 24 May 2019 · Contempt Application (Civil) No. 3349 of 2019 · Contempt Application (Civil) No. 3349 of 2019 · **Prima facie contempt; one more month to decide the clause 6.14 application; contempt disposed with liberty to reapply.**

HEADNOTE

In civil contempt alleging non-compliance with a 29 October 2018 direction to decide a U.P. Electricity Supply Code, 2005 paragraph 6.14 installment application and to withhold coercive recovery, the Allahabad High Court held a prima facie case made out but afforded the Executive Engineer one further month to comply, disposing of the application with liberty to move afresh if the direction remained uncomplied.

FACTUAL SUMMARY

The consumer moved civil contempt against the Executive Engineer, PVVNL Deoband, for alleged wilful disobedience of the 29 October 2018 order in Writ-C No. 35827 of 2018. That writ had given him liberty to apply under paragraph 6.14 of the U.P. Electricity Supply Code, 2005 to pay the demand in installments, required a decision within a month, and stayed coercive steps on a 14 September 2018 recovery citation. He asserted that a certified copy was submitted but the application was not decided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

contempt-for-non-decision-on-clause-6.14-installment-application

HOLDING

Finding a prima facie case of civil contempt for non-compliance of the 29 October 2018 direction to decide a paragraph 6.14 installment application and to withhold coercive recovery until that decision, the Court afforded the Executive Engineer one further month from production of a certified copy to comply, disposed of the contempt at that stage, and reserved liberty to the consumer to move a fresh application if the direction remained uncomplied. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.14 INSTALLMENT APPLICATION AND OF THE 14 SEPTEMBER 2018 RECOVERY CITATION

The Court only enforced the prior direction to decide the application in accordance with law; it neither granted nor refused installments and did not examine the citation. ¶ 1

NOT DECIDED — PUNISHMENT UNDER SECTION 12 OF THE CONTEMPT OF COURTS ACT, 1971

Despite a prima facie finding, the Court gave a further opportunity to comply and did not proceed to sentence. ¶ 1